

The above Order is from 52nd, 55th, 56th, 57th, and 58th English Orders of 1845, *mutatis mutandis*. All reference to Pleas and Supplemental Bills is necessarily omitted, as also provisions pointing to the Plaintiff's right to compel an answer. The Order would seem not to apply to Infant Defendants (*Emery vs. Newson*, 10 Simons, 564). It is irregular, if answer has been sworn, (*Rigby vs. Rigby*, 6 Beaven, 265). There seems to be no good reason why it may not apply to cases of Defendants out of the jurisdiction, (*Moss vs. Buckley*, 2 Phillips 628; *Laurie vs. Burn*, 12 Jurist, 598; but see *Anderson vs. Stather*, 11 Jurist, 96). Service of the note should be proved at the hearing (*Evans vs. Williams*, 6 Beaven, 118). As to the effect of the Note, with a view to the evidence, (see *Martin vs. Norman*, 2 Hare, 596.) At the hearing the Plaintiff must prove his case, and the Court will make such a decree as the evidence warrants.

Some of the above cases were decided prior to the Orders of 1845, but they went upon the Orders of 1844, under which there was a similar proceeding, and are therefore applicable to the present practice.

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